

JOHN Y. PHELPS, JR.
REGISTERED LAND SURVEYOR
POST OFFICE BOX 30122 - RALEIGH, NC 27622
(919) 787-3658
FAX (919) 787-6727

September 6, 1991

RECEIVED

SEP 9 1991

SOLID WASTE MANAGEMENT
FAYETTEVILLE REGIONAL OFFICE

Mr. Mark S. Frye
N. C. Department of Environment, Health
and Natural Resources
Solid Waste Management
225 Green Street
Suite 601
Fayetteville, North Carolina 28301

SCANNED
10/5/22 cy

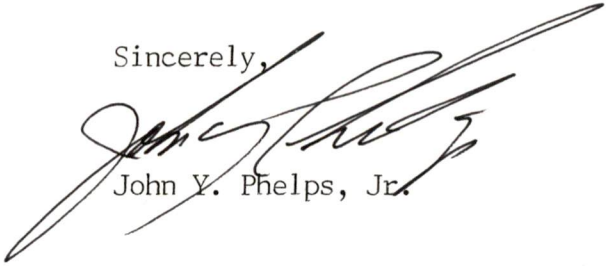
Dear Mark:

Enclosed you will find a copy of the deed where Key Homes acquired the proeprty. You will, also, find a legal description for the portion of this property that is the solid waste dump site. I am including two mylars for your approval.

I hope that this completes your requirements.

Thank you.

Sincerely,


John Y. Phelps, Jr.

JYPjr:jp

Enclosures

cc: Oliver Alphin, Attorney

1-800-852-5845

NORTH CAROLINA DURHAM 30th COUNTY March 1, 19 60, by and between W. J. McGhee and wife, Hallie D. McGhee part 1.00 of the first part, and Equitable Construction Company part 7 of the second part, WITNESSETH: That for and in consideration of the sum of One Hundred Dollars to them in hand paid, the receipt of which is hereby fully acknowledged, said part 1.00 of the first part have given, granted, bargained and sold and do by their successors give, grant, bargain, sell and convey unto the said part 7 of the second part and its heirs and assigns, the following lot or parcel of land, lying and being in Part of Cedar Fork Township, in said County and State bounded and described as follows, to-wit:

BEGINNING at a stake in the property line on the west side of N. C. Highway #55, at Ed Lowe's southeast corner, and running thence North 83 degrees 00 minutes West approximately 2013.7 feet to a stake; thence South 3 degrees 45 minutes West 849.4 feet to a stake; thence South 85 degrees 00 minutes East 1645.5 feet to a stake; thence North 2 degrees 45 minutes East approximately 617.9 feet to a stake, the northwest corner of lot designated "C" as shown on the plat hereinafter referred to; thence along the north line of lot "C" South 85 degrees 00 minutes East 385.3 feet to a stake in the property line on the west side of N. C. Highway #55; thence along and with said property line in a northerly direction a distance of approximately 147 feet, to the place and point of BEGINNING, and being lots designated as "D" and "E" as shown on map of property of E. C. and W. J. McGHEE by Credle Engineering Company dated July 18, 1955, and recorded in Plat Book 30 at page 144 in the Durham County Registry, to which map reference is hereby made for a more particular description of said property.



To Have and To Hold said lot or parcel of land, together with all privileges and appurtenances thereon and thereto belonging, unto the said part 7 of the second part and its successors heirs and assigns forever in fee simple. And said parties of the first part for themselves and their heirs covenant to and with said part 7 of the second part and its heirs and assigns that they are seized of said premises in fee, and have good right to convey the same in fee simple; that the same are free and clear of all encumbrances, except and that they will forever warrant and defend the said title to the same against the claims of all persons whomsoever. In Testimony Whereof, The said parties of the first part have set their hands and seal the day and year first above written.

W. J. McGhee [SEAL]
Hallie D. McGhee [SEAL]
[SEAL]
[SEAL]

NORTH CAROLINA Durham County. a Notary Public of Durham County, N. C. do hereby certify that W. J. McGhee and wife, Hallie D. McGhee personally appeared before me this day and acknowledged the due execution of the foregoing deed. Witness my hand and notarial seal this 12th day of April, 19 60. My commission expires 1-30-62. *Alma S. Lee* Notary Public

NORTH CAROLINA County. Notary Public of Durham County, North Carolina, certify that personally appeared before me this day and being duly sworn stated that, in his presence signed the foregoing instrument. WITNESS my hand and notarial seal this day of 19 My commission expires Notary Public

NORTH CAROLINA Durham County. a Notary Public of Durham County, N. C., is adjudged to be correct. Let the said deed, with all certificates, be registered. Witness my hand this 12th day of April, 19 60. *Alma S. Lee* Clerk Superior Court.

Filed for registration in my office on the 15th day of April, 19 60, at 1:15 PM and recorded on the 15th day of April, 19 60.

40 This Deed made the 23rd day of January, 1964, by
Equitable Construction Company
a corporation duly organized under the laws of the State of North Carolina, with its principal office in Guilford County, North
Carolina, hereinafter called party of the first part, to Parkwood Swim Club, Inc.
of Durham County, State of North Carolina, hereinafter called party of the second part; whether one
or more persons;

WITNESSETH:

That the party of the first part, for and in consideration of the sum of Ten Dollars and other good and valuable consideration
to it paid by the party of the second part, the receipt of which is hereby acknowledged, has bargained and sold and by these
presents does bargain, sell and convey unto the said party of the second part and the heirs and assigns of the said party of the sec-
ond part, premises in Triangle Township, Durham County, State of North Carolina,
described as follows:

BEGINNING at a point in the northern property line of Clermont Street in the
Parkwood Subdivision, said point being 257.7 feet in an easterly direction
along and with the northern property line of Clermont Street from the northeastern
intersection of Clermont Street and Euclid Road, thence North 00 degrees 10
minutes 30 seconds East 624.4 feet, more or less, to the southwest corner of
the Lowe Property, thence along and with the southern boundary line of the Lowe
Property North 87 degrees 08 minutes 20 seconds East 310 feet to a stake;
thence South 90 degrees 10 minutes 50 seconds West 288.9 feet, more or less,
to a stake, thence South 64 degrees 57 minutes 30 seconds East 150 feet to a stake
in the northern property line of Clermont Street, thence along and with the
northern property line of Clermont Street South 64 degrees 57 minutes 30 seconds
West 118.46 feet to a stake, thence along and with the northern property line of
Clermont Street in a westerly direction along a curve having a chord of 180.11
feet and an arc of 181.54 feet to the point and place of BEGINNING, and containing
5.6 acres, and being the PARKWOOD SWIMMING POOL SITE;

The above land was conveyed to the party of the first part by
See Book No. Page No.

TO HAVE AND TO HOLD the aforesaid tract or parcel of land and all privileges and appurtenances thereunto belonging to
the said party of the second part and the heirs and assigns of the said party of the second part in fee simple forever.

The said party of the first part covenants that it is seized of said premises in fee and has the right to convey the same in fee
simple; that the same are free from encumbrances, except as hereinabove stated, if any, and that it will warrant and defend the
said title to the same against the claims of all persons whomsoever.

IN WITNESS WHEREOF, the said party of the first part has caused this deed to be executed by its duly authorized officers
and its corporate seal hereunto affixed on the day and year first above written.



EQUITABLE CONSTRUCTION COMPANY
By: *Richard C. Thompson*
President

STATE OF NORTH CAROLINA - GUILFORD COUNTY

I, *Carolyn Peay*, a Notary Public, do hereby certify that
Richard C. Thompson personally came before me this day and acknowledged that he
is the Secretary of *Equitable Construction Company*
and that, by authority duly given and as the act of the corporation, the foregoing instrument was signed in its name by its
President, sealed with its corporate seal and attested by himself as its *Assistant* Secretary.
I witness my hand and official seal, this the *24* day of *January*, 19 *64*
Carolyn Peay
Notary Public
January 29, 1966

STATE OF NORTH CAROLINA - DURHAM COUNTY

The foregoing certificate of *Carolyn Peay*
a Notary Public of Guilford County, North Carolina, is adjudged to be correct. Let said deed and the certificates be registered.
This the *27th* day of *January*, 19 *64*

Lee J. Cates
Deputy Clerk of Superior Court
County, North Carolina

Filed for registration on the *27th* day of *Jan*, 19 *64*, at *3:20* o'clock *P* M., and duly recorded
in the office of the Register of Deeds of *Durham* County, North Carolina, in Book *299*, Page *40*

By: *A. J. [Signature]*
Deputy

MOORE & VAN ALLEN

ATTORNEYS AT LAW

ONE HANNOVER SQUARE

SUITE 1700

POST OFFICE BOX 26507

RALEIGH, NORTH CAROLINA 27611

TELEPHONE (919) 828-4481

OTHER OFFICES:

CHARLOTTE, N. C.

DURHAM, N. C.

SOUTH PARK-CHARLOTTE, N. C.

TELEFAX (919) 828-4254

DAVID E. FOX
PARTNER

DIRECT DIAL: (919) 821-6218

February 24, 1992

Mr. Mark Fry
Solid Waste Section
Division of Solid Waste Management
Wachovia Bank Building
225 Green Street, Suite 601
Fayetteville, North Carolina 28301

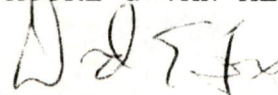
Re: Parkwood Landfill

Dear Mark:

Please find enclosed a copy of the fully executed and filed closure notice on the above-referenced matter. I would additionally note to you that a survey of the site was filed in the Durham County Register of Deeds, in Book 127, at Page 25 on February 20, 1992. As such, it is my hope that this case has been completely closed out. I want to take the opportunity to thank you for your courtesy and patience in regard to this matter. Finalizing the paper work took longer than any of us expected and it is for that reason in particular that I want to thank you for your attitude in regard to this matter.

Sincerely,

MOORE & VAN ALLEN



David E. Fox

DEF/pw
enclosure

cc: Ms. Nancy Adams

MAIL TO: MOORE & VAN ALLEN
(DF)

CLOSURE NOTICE

'92 FEB 20 AM 9 37

RUTH C. GARRETT

STATE OF NORTH CAROLINA
COUNTY OF DURHAM

BEFORE THE DIVISION OF SOLID WASTE MANAGEMENT
DEPARTMENT OF ENVIRONMENT, HEALTH AND
NATURAL RESOURCES

IN RE:)
)
PROPERTY OF KEY HOMES, INC.)
(EQUITABLE CONSTRUCTION CO.))
)
LOCATED IN CEDAR FORK TOWNSHIP)
)

NOTICE OF CLOSED
UNPERMITTED
SOLID WASTE
DISPOSAL SITE

NOTICE IS HEREBY GIVEN THAT SOLID WASTE HAS BEEN BURIED ON THE
HEREINAFTER DESCRIBED PROPERTY OF

KEY HOMES, INC.
(EQUITABLE CONSTRUCTION COMPANY)
2640 PLAZA PLACE, SUITE 310
RALEIGH, N.C. 27612

AT THE LOCATION DESCRIBED UPON THE ATTACHED MAP BOOK PREPARED BY ROBERT W.
KEEFE, REGISTERED LAND SURVEYOR, AND RECORDED IN MAP BOOK 127, PAGE
25.

BEGINNING at a stake in the property line on the west side of N.C.
Highway #55, at Ed Lowe's southeast corner, and running thence North
83 degrees 00 minutes West approximately 2013.7 feet to a stake;
thence South 3 degrees 45 minutes West 849.4 feet to a stake; thence
South 85 degrees 00 minutes East 1645.5 feet to a stake; thence North
2 degrees 45 minutes East approximately 617.9 feet to a stake; the
northwest corner of lot designated "C" as shown on the plat
hereinafter referred to; thence along the north line of Lot "C" South
85 degrees 00 minutes East 385.3 feet to a stake in the property line
on the west side of N.C. Highway #55; thence along and with said
property line in a northerly direction a distance of approximately 14
feet, to the place and point of BEGINNING, and being Lots designated
"D" and "E" as shown on map of property of E.C. and W.J. McGhee by
Credle Engineering Company dated July 18, 1955, and recorded in Plat
Book 30 at page 144 in the Durham County Registry, to which map
reference is hereby made for a more particular description of said
property.

When the property, or any part of this property on which solid waste
has been buried, is conveyed, grantor shall place the following language
upon the deed, in no smaller type than that used in the body of the deed:

"This is notification that solid waste has been disposed on this property. See Closure Notice Recorded at Book _____, Page _____. Questions concerning this matter may be directed to the North Carolina Department of Environment, Health and Natural Resources, Division of Solid Waste Management, Solid Waste Section, P.O. Box 27687, Raleigh, North Carolina 27611-7687."

This Closure Notice is not a permit for solid waste disposal, and is not to be construed as a permit for a disposal facility. The site has never been a permitted solid waste disposal site, and has come to the attention of the Solid Waste Section in the context of closure of non-conforming sites/open dumps, pursuant to 15A N.C. Admin. Code 13B .0502.

The sole purpose of recording this Closure Notice is to give actual and constructive notice to subsequent purchasers of the property described herein, in order to reduce any risk to public health or the environment from the improper disturbance of the waste.

After recording, this original instrument, affixed with the seal of the Register of Deeds, together with the date, book and page number of recording, shall be returned to:

The Solid Waste Section
Division of Solid Waste Management
Wachovia Bank Building
225 Green Street, Suite 601
Fayetteville, N.C. 28301

Terry F. Dover
Terry F. Dover
Eastern Area Supervisor
Solid Waste Section

NORTH CAROLINA

Cumberland COUNTY

I, Terri M. Frazier a Notary Public for said
County and State, do hereby certify that Terry F. Dover
personally appeared before me this day and acknowledged the due execution
of the foregoing instrument.

Witness my hand and official seal, this the 30th day of
September, 1991.

(OFFICIAL SEAL)

Terri M. Frazier
Notary Public

My commission expires: August 4, 1996.

KEY HOMES, INC.

BY:

Nancy D. Adams
Vice President

(SEAL)

ATTEST:

W. F. Merritt
Asst. Secretary

(Corporate Seal)

NORTH CAROLINA

Guilford COUNTY

I, Joan E. Inge, a Notary Public of the aforesaid County and State, do hereby certify that W. Frank Merritt personally appeared before me this day and acknowledged that he/she is the Assistant Secretary of Key Homes, Inc., a North Carolina corporation, and that by authority duly given and as an act of the corporation, the foregoing instrument was signed in its name by its Vice President, and attested by himself/herself as Assistant Secretary, and sealed with its common corporate seal.

Witness my hand and notarial seal this 7th day of January, 1992.

Joan E. Inge
Notary Public

My Commission Expires:

4-13-92

Meets and Bound Description of the Solid Waste
 "Dump Site" within Lot E of Map Entitled E.C. &
 W. J. McGhee Property As Shown In Plat Book 30
 page 144. For Map of Dump Site See Map Entitled
 "Property of Key Homes, Inc." by John Y. Phelps, Jr.
 Registered Land Surveyor, Dated February 19, 1991.

BEGINNING at a point within Lot E as shown on Map
 Entitled Property of E.C. & W. J. McGhee As Shown
 in Plat Book 30 Page 144, said point being
 N62°06'43"E a distance of 67.84' from the South
 West corner of Lot E; thence, with the outer edge
 of said Solid Waste "Dumpsite" the following calls:

N 12°41;01"E	28.11'
W 44°08'46"W	27.74'
N 01°19'47"E	25.34'
N 22°10'04"E	32.28'
N 00°26'17"W	10.45'
N 39°33'25"E	12.31'
N 86°12'22"E	24.45'
N 07°22'58"W	74.17'
N 20°06'06"E	12.95'
N 27°20'15"E	79.95'
N 58°02'19"E	30.41'
N 44°55'32"E	29.94'
N 42°48'53"E	37.45'
N 49°12'15"E	21.84'
N 70°31'01"E	37.30'
N 67°40'06"E	25.23'
N 53°53'30"E	32.16'
N 39°52'46"E	35.60'
N 49°53'51"E	39.05'
N 83°20'18"E	27.73'
N 84°11'25"E	45.37'
N 79°33'54"E	45.71'
S 63°48'20"E	42.67'
S 55°23'20"E	33.27'
S 88°38'43"E	52.95'
S 30°57'28"E	29.64'
S 19°37'55"E	49.70'
S 23°02'05"E	43.47'
S 13°01'09"E	31.76'
S 25°40'55"W	34.83'
S 07°43'22"E	27.01'
S 10°40'38"W	29.14'
S 18°39'41"W	31.00'
S 41°57'15"W	42.63'
S 36°53'40"W	34.67'
S 59°46'22"W	36.93'
S 59°57'41"W	30.13'
S 40°44'45"W	43.23'
S 51°40'11"W	34.88'
S 55°37'56"W	34.98'
S 58°42'34"W	36.42'
S 52°39'21"W	50.32'
S 74°16'06"W	37.01'

S 87°44'24"W 31.84' to a point in the South Line of Lot E; Thence with South Line of Lot E N 85°00'24"W a distance of 208.47' to a point S 85°00'24"E 79.29' from the South West corner of Lot E; thence, N 03°06'59"E 13.00'; N 72°54'15"W 16.14'; N 11°37'25"W 21.34' to the Point and Place of Beginning; Containing 4.952 Acres As Shown On Map Entitled: "Property of Key Homes, Inc. by John Y. Phelps, Jr., R.L.S. dated February 19, 1991.

RECORD OF COMMUNICATION

☐ PHONE CALL ☐ DISCUSSION ☐ FIELD TRIP ☐ CONFERENCE
☐ OTHER (SPECIFY)

(Record of item checked above)

TO:

FROM:

DATE

TIME

Mark S. Fry

SUBJECT

Parkwood Subd. - Key Home - Dump site - Durham Co.

SUMMARY OF COMMUNICATION

Called David Fox - Attn - 1-25-91 to check on progress for clearing out this site - ie covering exposed waste on slopes and getting plot # deed submitted. Mr. Fox stated that he would take care of it.

1-29-91 - Larry Holt request meeting at site to show him exposed waste. Meeting set for - 10 AM 2-5-91.

I also told him to rush up paper work on closing this site out. He agreed.

2-5-91 - met Larry Holt & one of his employees at the site. I showed them slopes that need more cover and asked him to call me when completed. I asked about survey and he said it is near completion.

5-8-91 - I visited the site. General areas of right side slopes have been covered, seeded and staked. Approx slopes are covered as well as can be expected now. Most slopes are stabilized.

8-2-91 - Called Larry Holt - not in. Called John Phelps - not in.

CONCLUSIONS, ACTION TAKEN OR REQUIRED

8-2-91 - John Phelps called back. Agreed to complete paper work & send in.

INFORMATION COPIES

TO:

Page Break



State of North Carolina
Department of Environment, Health, and Natural Resources
Division of Solid Waste Management

South Central Regional Office • 225 Green Street, Suite 601 • Fayetteville, North Carolina 28301
Telephone: (919) 486-1191 Fax: (919) 486-1791

James G. Martin, Governor
William W. Cobey, Jr., Secretary

William L. Meyer
Director

September 30, 1991

Moore and Van Allen
Attorneys at Law
One Hanover Square, Suite 1700
Raleigh, N.C. 27601

Attention: Craig Bromby

RE: Closure Notice - Unpermitted Solid Waste Disposal Site

Dear Mr. Bromby:

Enclosed is a Closure Notice for the unpermitted open dump located on the property of Key Homes, Inc. (Equitable Construction Company). Also, attached is a list of instructions that need to be completed regarding same.

If you have any questions, please do not hesitate to contact Mark Fry, Solid Waste Management Specialist, or me.

Sincerely,

A handwritten signature in cursive script that reads "Terry F. Dover".

Terry F. Dover
Eastern Area Supervisor
Solid Waste Section

TFD/wlf

Enclosures: Instruction List
Closure Notice

cc: Mark Fry
Central Office Files - Durham N/F

INSTRUCTION LIST FOR CLOSURE NOTICE

1. Have Owner sign Closure Notice and Owner's signature notarized.
2. Record Map at the Register of Deeds Office.
3. Indicate Map Book and Page Numbers (by Register of Deeds Office prior to filing Closure Notice).
4. Record Closure Notice by Register of Deeds Office.
5. Return completed Closure Notice to:

Solid Waste Section
Division of Solid Waste Management
Wachovia Bank Building
225 Green Street, Suite 601
Fayetteville, N.C. 28301

CLOSURE NOTICE

STATE OF NORTH CAROLINA

COUNTY OF DURHAM

BEFORE THE DIVISION OF SOLID WASTE MANAGEMENT
DEPARTMENT OF ENVIRONMENT, HEALTH AND
NATURAL RESOURCES

IN RE:

PROPERTY OF KEY HOMES, INC.
(EQUITABLE CONSTRUCTION CO.)

LOCATED IN CEDAR FORK TOWNSHIP)

NOTICE OF CLOSED
UNPERMITTED
SOLID WASTE
DISPOSAL SITE

NOTICE IS HEREBY GIVEN THAT SOLID WASTE HAS BEEN BURIED ON THE
HEREINAFTER DESCRIBED PROPERTY OF

KEY HOMES, INC.
(EQUITABLE CONSTRUCTION COMPANY)
2640 PLAZA PLACE, SUITE 310
RALEIGH, N.C. 27612

AT THE LOCATION DESCRIBED UPON THE ATTACHED MAP BOOK PREPARED BY ROBERT W. KEEFE, REGISTERED LAND SURVEYOR, AND RECORDED IN MAP BOOK _____, PAGE _____

BEGINNING at a stake in the property line on the west side of N.C. Highway #55, at Ed Lowe's southeast corner, and running thence North 83 degrees 00 minutes West approximately 2013.7 feet to a stake; thence South 3 degrees 45 minutes West 849.4 feet to a stake; thence South 85 degrees 00 minutes East 1645.5 feet to a stake; thence North 2 degrees 45 minutes East approximately 617.9 feet to a stake; the northwest corner of lot designated "C" as shown on the plat hereinafter referred to; thence along the north line of Lot "C" South 85 degrees 00 minutes East 385.3 feet to a stake in the property line on the west side of N.C. Highway #55; thence along and with said property line in a northerly direction a distance of approximately 147 feet, to the place and point of BEGINNING, and being Lots designated a "D" and "E" as shown on map of property of E.C. and W.J. McGhee by Credle Engineering Company dated July 18, 1955, and recorded in Plat Book 30 at page 144 in the Durham County Registry, to which map reference is hereby made for a more particular description of said property.

When the property, or any part of this property on which solid waste has been buried, is conveyed, grantor shall place the following language upon the deed, in no smaller type than that used in the body of the deed:

"This is notification that solid waste has been disposed on this property. See Closure Notice Recorded at Book _____, Page _____. Questions concerning this matter may be directed to the North Carolina Department of Environment, Health and Natural Resources, Division of Solid Waste Management, Solid Waste Section, P.O. Box 27687, Raleigh, North Carolina 27611-7687."

This Closure Notice is not a permit for solid waste disposal, and is not to be construed as a permit for a disposal facility. The site has never been a permitted solid waste disposal site, and has come to the attention of the Solid Waste Section in the context of closure of non-conforming sites/open dumps, pursuant to 15A N.C. Admin. Code 13B .0502.

The sole purpose of recording this Closure Notice is to give actual and constructive notice to subsequent purchasers of the property described herein, in order to reduce any risk to public health or the environment from the improper disturbance of the waste.

After recording, this original instrument, affixed with the seal of the Register of Deeds, together with the date, book and page number of recording, shall be returned to:

The Solid Waste Section
Division of Solid Waste Management
Wachovia Bank Building
225 Green Street, Suite 601
Fayetteville, N.C. 28301

Terry F. Dover
Terry F. Dover
Eastern Area Supervisor
Solid Waste Section

NORTH CAROLINA

Cumberland COUNTY

I, Terri M. Frazier a Notary Public for said
County and State, do hereby certify that Terry F. Dover
personally appeared before me this day and acknowledged the due execution
of the foregoing instrument.

Witness my hand and official seal, this the 30th day of
September, 1991.

(OFFICIAL SEAL)

Terri M. Frazier
Notary Public

My commission expires: August 4, 1996.

President

ATTEST:

(Company)
Secretary _____

NORTH CAROLINA

_____ COUNTY

I, _____, a Notary Public
for said County and State, do hereby certify that _____
(Name of Secretary
Assistant Secretary, Cashier, or Assistant Cashier)
personally came before me this day and acknowledged that he (or
she) is _____
(Secretary, Assistant Secretary, Cashier, or Assistant Cashier)
of _____
(Name of Corporation)

a corporation, and that by authority duly given and as the act of
the corporation, the foregoing instrument was signed in its name
by its _____, sealed with its corporate
(President or Vice-President)
seal, and attested by himself (or herself) as its _____
(Secretary
Assistant Secretary, Cashier, or Assistant Cashier)

Witness my hand and official seal, this the _____ day
of, _____ 19____.

(OFFICIAL SEAL)

Notary Public

My commission expires: _____, 19____.

Page Break



State of North Carolina
Department of Environment, Health, and Natural Resources
Division of Solid Waste Management

South Central Regional Office • 225 Green Street, Suite 601 • Fayetteville, North Carolina 28301
Telephone: (919) 486-1191 Fax (919) 486-1791

James G. Martin, Governor
William W. Cobey, Jr., Secretary

William L. Meyer
Director

March 24, 1992

Moore and Van Allen
Attorneys At Law
One Hanover Square, Suite 1700
Raleigh, N.C. 27601
Attn: David E. Fox, Esquire

Subject: Close-out of Non-Conforming Solid Waste Disposal Site

Key Homes, Inc.
(Equitable Construction Company)
2640 Plaza Place, Suite 310
Raleigh, N.C. 27612
Township: Cedar Fork
County: Durham

Dear Mr. Fox:

The executed and recorded "Closure Notice" has been received by our office on the above site. Additionally, an inspection of the property has determined that the site has been closed in accordance with 15A N.C. Admin. Code 13B.

Thank you for your cooperation in this matter and please contact us if you have any questions.

Sincerely,

A handwritten signature in cursive script that reads "Terry F. Dover".

Terry F. Dover
Eastern Area Supervisor
Solid Waste Section

TFD/lld

cc: Mark S. Fry
Central Files - Durham N/F

**RECORD OF
COMMUNICATION**

☐ PHONE CALL ☐ DISCUSSION ☐ FIELD TRIP ☐ CONFERENCE
☐ OTHER (SPECIFY)

(Record of item checked above)

TO:

File

FROM:

M. FRV

DATE

TIME

SUBJECT

Key Home

SUMMARY OF COMMUNICATION

1-3-92 - I called Craig Bromley - Attn,
for Key Home Inc. to remind him to
get closure notice signed & recorded. He
was in a meeting. I left message to call
me back. (821-6251)

I called back. Mr. Bromley said the notice had
gone to his client to be signed and get
recorded. He will check on and call me by
next week.

CONCLUSIONS, ACTION TAKEN OR REQUIRED**INFORMATION COPIES**

TO:

MEMO

TO: _____
 DATE: _____
 SUBJECT: _____

9-20-91

Tony has plot to look to file
 for Parkway Subdivision to prepare
 Clean Notice.

Craig Browning - Attn. - Clean Notice sent to,
 821-6251 - C-1-3-92 - not available

- C-1-17-92 - Reported to me that the
 Clean Notice has not been signed

Daniel Fox - 821-6218 - C-1-17-92 - Reported that Reg. of Deeds
 want it on plot to make "Browning" on
 plot, and he would take care of it then get
 recorded.

2-28-92 - Received Recorded Clean Notice

North Carolina Department of Environment,
 Health, and Natural Resources



Solid Waste Section
(919) 733-0692

PROCEDURE FOR RECORDATION OF A CLOSED,
UNPERMITTED SOLID WASTE DISPOSAL SITE,
IN ACCORDANCE WITH 15A N.C.A.C. 13B .0502(2)

The following notice recordation procedure is to be used when the Division of Solid Waste Management determines that a non-conforming (unpermitted) solid waste disposal site is suitable for closure by compacting and covering the waste in place, contingent upon recordation of the closure notice. 15A N.C.A.C. 13B .0502(2). This procedure will be included, where appropriate, in the Notice of Violation sent to the owner/operator of a nonconforming site (open dump).

A. The landowner(s) shall:

1. Submit to the Section an entire copy of the property deed giving the complete legal description of the property as it is registered in the index of the county where the land is located. The description will either be by metes and bounds, or by reference to a recorded plat map.
2. Submit to the Section a plat of the property sufficient to meet the standards for recording the Map Index of the county where the land is located. The map must show:
 - a. Name of owner, property lines, north arrow, scale and bearings and distances taken from the deed.
 - b. Disposal area delineated. * "SOLID WASTE DUMP SITE" WRITTEN ON PLAT
 - c. Certification and seal by registered land surveyor or registered engineer.
- B. The Section will prepare a "Notice of Closed Unpermitted Solid Waste Disposal Site", which the landowner(s) shall sign and acknowledge in the form prescribed by N.C.G.S. 47-38 through 47-43.

NOTE - Be sure plat ties to USGS monument in accordance with GS 47-30 (A)(9)

The landowner(s) must file the closure notice with the map attached where appropriate, with the Register of Deeds in the county or counties where the land is located.

The Register of Deeds shall record the Notice in the Grantor Index under the name(s) of the owner(s) of the land.

After all other closure requirements of 10G .0502 have been met, and the Section has received the original closure notice from the Register of Deeds, upon which the Book and page number where recorded have been noted, the Section will issue a closure letter.

1

If the map is too large to be reduced legibly to legal size, it shall be recorded in the map index, and the closure notice shall reference the separately recorded plat.

JOHN Y. PHELPS, JR.
REGISTERED LAND SURVEYOR
POST OFFICE BOX 30122 - RALEIGH, NC 27622
(919) 787-3658
FAX (919) 787-6727

April 10, 1991

File
in
Key Home

N/F
Durham

RECEIVED

APR 11 1991

SOLID
WASTE
S

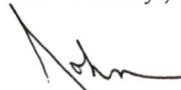
Mr. Mark Fry
Division of Solid Waste Management
225 Creech Street
Wachovia Bank Building
Suite 601
Fayetteville, North Carolina 28301

Dear Mark:

I am sending you two mylar maps of Key homes property in Durham, North Carolina. I think that this is what you need.

Thank you for working so closely with us on this project.

Sincerely,



John Y. Phelps, Jr.

JYPjr:jp

4-19-91 - I mailed attached letter with
mylar^{sp} maps back.

MEMO

DATE: 4-19-91

TO: John Phelps

SUBJECT: Key Home site

As per our phone conversation 4/16/91, the maps are fine. Please send me two copies when you send them. Enclosed is description of all paper work that is required for us to prepare a closure notice. Please send as soon as possible.

Thanks
Mark S. Fry



North Carolina Department
of Environment, Health, and
Natural Resources

MARK S. FRYE

Waste Management Specialist
Division of Solid Waste Management
Solid Waste Section

225 Green Street
Wachovia Bank Bldg., Suite 601
Fayetteville, N.C. 28301
Office: (919) 486-1191
Raleigh: (919) 733-0692



North Carolina Department of Environment,
Health, and Natural Resources

RECORD OF COMMUNICATION

☐ PHONE CALL ☐ DISCUSSION ☐ FIELD TRIP ☐ CONFERENCE
☐ OTHER (SPECIFY)

(Record of item checked above)

TO:

FROM:

DATE

TIME

Mark S. Fry

12-11-90

AM

SUBJECT

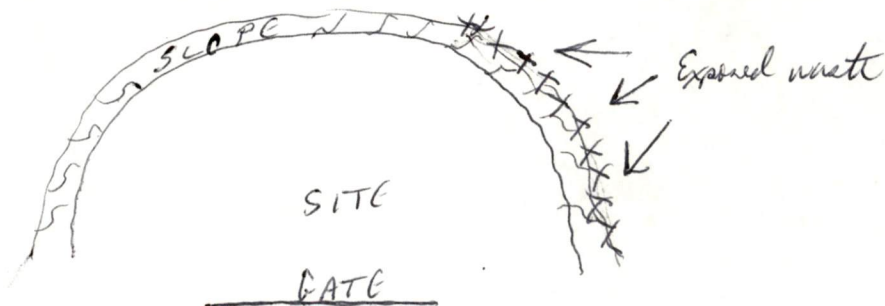
Parkwood Subst. - Dump site.

SUMMARY OF COMMUNICATION

Paul Gorman and I met with Dennis Lubahn and two other concerned citizens at their request (966-6915w + 544-3043H). They pointed out exposed waste on right slope and think that we should make Key Homes provide more cover. I pointed out that it would be extremely difficult to get better cover with compaction, due to extreme slope and no possibility of equipment access. I told them that I would contact Key Homes and direct them to cover as much as possible and to remove loose waste (ie. white goods - tires)

Called Attn, David Fox - 12-14-90 - Explained needed more cover on right side slope and to pull out loose waste. He agreed to have his client do so.

CONCLUSIONS, ACTION TAKEN OR REQUIRED



INFORMATION COPIES

TO:

STREET



N-F
Durham Co.

State of North Carolina
Department of Environment, Health, and Natural Resources
Division of Solid Waste Management

South Central Regional Office • 225 Green Street, Suite 601 • Fayetteville, North Carolina 28301
Telephone: (919) 486-1191 FAX: (919) 486-1791

James G. Martin, Governor
William W. Cobey, Jr., Secretary

William L. Meyer
Director

November 14, 1990

Mr. John Y. Phelps, Jr.
P.O. Box 30122
Raleigh, N.C. 27612

Dear Mr. Phelps:

Please consider this letter response to your inquiry as to what was disposed of in the Key Homes, Parkwood Subdivision dump site in Durham County.

This site was originally investigated in 1987 by Dexter Matthews, who was the Waste Management Specialist for the Durham area at that time. When I was assigned to the area in early 1990, the site had been closed, however, the required copy of the deed and plat of the property had not been provided to the Solid Waste Section. Therefore, the Section could not prepare a Closure Notice.

In a conversation with Mr. Matthews, he informed me that the waste disposed of at the site appeared to be primarily construction waste. It would be virtually impossible for Mr. Matthews to know exactly what was disposed of due to the fact that most of the waste was already in place. The dump was operated by Key Homes, who at that time was involved in construction activities at the Parkwood Subdivision.

Enclosed is a letter to Dexter Matthews from David Fox of the Law Offices of Moore and Van Allen who represented Key Homes. Mr. Fox indicated that the site had been used by his client during their construction activities there.

If I can be of any further assistance to you, please feel free to contact me my office.

Sincerely,

A handwritten signature in dark ink, appearing to read "Mark S. Fry".

Mark S. Fry
Waste Management Specialist
Solid Waste Section

MSF/wlf
Enclosure

RECORD OF COMMUNICATION

☐ PHONE CALL ☐ DISCUSSION ☐ FIELD TRIP ☐ CONFERENCE
☐ OTHER (SPECIFY)

(Record of item checked above)

TO:

FROM:

Mark S. Fry

DATE

TIME

SUBJECT

Key Home - Parkwood Subdivision - Durham Co.

SUMMARY OF COMMUNICATION

See Log Book - 5-23-90
See Log Book - 6-13-90
See " " - 7-2-90

9-19-90 John Phelps - Surveyor called - Wants to meet me on site to see what area to survey for closure.

10-2-90 - met with John Phelps - Surveyor - went to site and showed him what we need in order to prepare closure notice.

11-8-90 - Wrote letter to John Phelps - He had requested info as to what had been disposed of. (His employees were concerned about working the site)

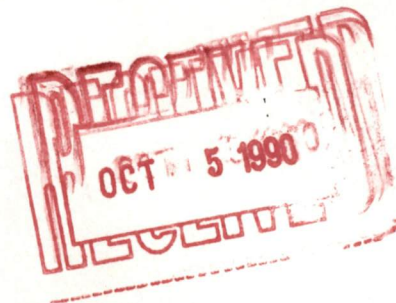
CONCLUSIONS, ACTION TAKEN OR REQUIRED

INFORMATION COPIES

TO:

JOHN Y. PHELPS, JR.
REGISTERED LAND SURVEYOR
POST OFFICE BOX 30122 - RALEIGH, NC 27622
(919) 787-3658
FAX (919) 787-6727

October 2, 1990



Mr. Larry Holt
Key Homes, Inc.
2640 Plaza Place
Suite 310
Raleigh, North Carolina 27612

SUBJECT: Durham County Dump Site

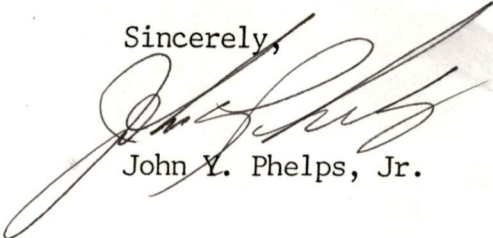
Dear Larry:

I met with Mark Fry at the Durham County Dump Site today per your instructions. What he needs is a survey line with bearings and distances at the tree line that surrounds the site. The tree line appears to be the outer most edge of the dump site. Once we get this line established, we need to contact the Wetland Division of the Corp of Engineers to come lay out the wetlands on the site.

When the boundary is run and the map is drawn that shows both the wetlands and the perimeter of the waste site, I need to get it to Mr. Fry for his approval.

Thank you.

Sincerely,


John Y. Phelps, Jr.

JYPjr:jp

cc: Mark Fry
David Fox, Attorney

MURRAY & KERSEY

POST OFFICE BOX 12719
RESEARCH TRIANGLE PARK
NORTH CAROLINA 27709
919-544-1764

J. RAY KERSEY
KAY MURRAY

March 2, 1989

Mr. Dexter Matthews
NC Soil and Hazardous Wastes
S. Central Regional Office
Wachovia Bank Building, Suite 606
Fayetteville, NC 28301

Dear Mr. Matthews:

This firm represents the Parkwood Homeowner's Association. We have been asked by the Association to investigate the status of a dump site at the end of Clermont Drive in the Parkwood area of Durham County which was believed to be condemned.

On January 24, 1989, I spoke with you by telephone regarding this dump site, but since you were not in your Fayetteville office at the time, you did not have the records before you and could not, then, give a full definitive statement. Nevertheless, your recollection at that time was that the site was:

- (a) not condemned;
- (b) an open dump having no permit;
- (c) the subject of a complaint;
- (d) not in a watershed area, thus not subject to a search for hazardous materials;
- (e) partially meeting closure requirements;
- (f) subject to erosion control activity by Durham County;
- (g) subject to certain unspecified activity by the U.S. Corps of Engineers;
- (h) the subject of activity by you and an unnamed attorney representing Key Homes working toward compliance;
- (i) in need of being capped (closed) and a record of such closure registered with the Durham County Registrar of Deeds.

Would you please confirm to me the above and provide additionally,

- (1) any available details on items (a) through (g);
- (2) the name of the attorney representing Key Homes and an address or telephone number;
- (3) the current status of the case; and

(4) copies of any documents pertinent to the below
stated needs.

It is our understanding that this property is to be given by
Key Homes to the Parkwood Association at some time in the not-to-
distant future. The Association wants to be ensured that they are
not receiving a piece of "troubled property" that could either
cost substantial sums to get out of trouble or open them to
unknown liability in the future.

Any help that you can be in this matter would be greatly
appreciated.

Very truly yours,
MURRAY & KERSEY
Ray Kersey (RM)
Ray Kersey

RK/k1w

MOORE & VAN ALLEN

ATTORNEYS AT LAW

A MERGER OF POWE, PORTER AND ALPHIN, P.A.
AND MOORE, VAN ALLEN, ALLEN & THIGPEN

FIRST UNION NATIONAL BANK BUILDING

301 WEST MAIN STREET, SUITE 800

POST OFFICE BOX 3843

DURHAM, N.C. 27702

E. K. POWE
THOMAS W. STEED, JR.
RICHARD E. THIGPEN, JR.
ROBERT W. KING, JR.
R. BEVERLY R. WEBB
W. TRAVIS PORTER
HARRY J. GRIM
OLIVER W. ALPHIN
GRAHAM D. HOLDING, JR.
R. MICHAEL CHILDS
ARCH T. ALLEN, III
BARNEY STEWART, III
GEORGE V. HANNA, III
CHARLES L. STEEL, IV
REICH L. WELBORN
EDWARD L. EMBREE, III
PAUL H. EFIRD, III
CHARLES R. HOLTON
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JOHN C. FENNEBRESQUE
C. WELLS HALL, III
WILLIAM S. PATTERSON
N. A. CIOMPI
NANCY RUSSELL SHAW
ROBERT D. DEARBORN
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STEPHEN D. HOPE
JEFFREY J. DAVIS
NOAH H. HUFFSTETLER, III
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T. EDMUND RAST
GEORGE M. TEAGUE
CHARLES D. CASE
JAMES CARLOS SMITH
DANIEL G. CLODFELTER
WILLIAM D. DANNELLY
JOSEPH W. EASON
JAMES L. STUART
CHRISTY EVE REID
EUGENE F. DAUCHERT, JR.
ANN M. HAPPEL
H. HEATH ALEXANDER
JAMES H. CLARKE
JULIA V. JONES
ANN HOGUE PAPPAS
CHRISTOPHER C. KUPEC
JAMES W. HOVIS
RANDEL E. PHILLIPS
WILLIAM ERIC FREEMAN
DEAN M. HARRIS
C. STEVEN MASON
DUMONT CLARKE, IV

LAURA J. G. LONG
LAURA BERNSTEIN LUGER
HAYDEN J. SILVER, III
HAL A. LEVINSON
DONALD S. INGRAHAM
T. RANDOLPH PERKINS
DAVID E. FOX
BRADLEY D. MURCHISON
GREGORY D. PORTER
RICHARD W. EVANS
A. MARK ADCOCK
JEAN GORDON CARTER
BRYAN E. LESSLEY
ROBERT V. BAKER
DAVID S. WALLS
RICHARD C. GASKINS, JR.
BRAD S. MARKOFF
W. DOAK BARNHARDT
CHARLES E. JOHNSON
RICHARD M. THIGPEN
GARY W. SWINDELL
RICHARD S. POE
JONATHAN D. SASSER
BARRY S. BROWN
JO ANN RAGAZZO WOODS
MATTHEW R. JOYNER

STEPHANIE LEA STROMIRE
MARK E. CARPENTER
GREGORY H. GACH
ROBERT C. ERVIN
TIMOTHY E. FLEMMING
SARAH WESLEY FOX
JOHN C. BROWNING
PAUL M. GREEN
JERRY N. SMITH
JOHN S. RUSSELL
MARGARET ANN BEHRINGER
DENISE SMITH CLINE
GERALD ANTHONY TINGEN
RANDOLPH M. FLETCHER
DAVID J. QUATTLEBAUM
DAVID L. EADES
PETER J. McGRATH, JR.
JAMES R. McLoughlin, JR.
MARGARET A. NOWELL
H. FRASIER IVES
NEIL C. COOKSEY
EILEEN C. PRUETTE
ISABEL B. WORTHY
THOMAS W. STEED, III
JOSEPH D. JOYNER, JR.

OF COUNSEL:
JAMES O. MOORE
WILLIAM K. VAN ALLEN

TELEPHONE
DURHAM 919-682-5654
CHAPEL HILL 919-929-4832
TELEFAX 919-682-7739

3000 NCNB PLAZA
CHARLOTTE, N.C. 28280
704-331-1000

2101 REXFORD ROAD, SUITE 134
CHARLOTTE, N.C. 28211
704-365-5566

200 WEST MORGAN
P.O. BOX 26507
RALEIGH, N.C. 27611
919-828-4481

August 19, 1987

Mr. Dexter Matthews
Solid and Hazardous Waste
Management Section
Wachovia Bank Building
Suite 606
Fayetteville, North Carolina 28301

Re: Parkwood Subdivision

Dear Mr. Matthews:

I appreciate the time which you spent talking with me during the week of August 10, trying to clarify the above situation. As I indicated to you then, it is my understanding that Key Homes, Inc. has for quite some time had an intention to use the site in question as a solid waste landfill with an ultimate plan to cap the site and convert it into a softball field for the Parkwood Community. Notwithstanding that, I have indicated to my client that the site is currently considered an illegal landfill and that a Notice of Closure may be forthcoming from your office unless some sort of agreement can be worked out for cleaning up the site and obtaining a solid waste permit. Towards that end, my client has assured me that it will take certain required steps as set forth below.

First of all, I have been assured that Key Homes will begin an immediate clean up of the landfill site, during the week of August 17. The clean up will be designed to remove any and all materials which do not fall within the definition of solid waste as set forth in your department's regulations. Also during the week of August 17, a surveyor will begin to study the site and set forth the boundaries which Key Homes would propose to use in establishing an approved landfill. That surveyor will note any

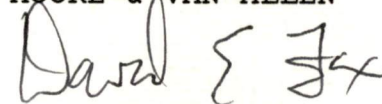
Mr. Dexter Matthews
August 19, 1987
Page 2

springs or streams which might arguably be affected by placing a landfill in the area. Additionally, if you will forward to me an application for a solid waste landfill, my client will complete that, making reference to the survey which they intend to have done.

Once again, my client appreciates your attitude in this situation. Key Homes desires to maintain a solid waste landfill in the Parkwood subdivision while it completes the remaining construction which it has planned for that area. The survey which it intends to have conducted will therefore take into consideration the volume of work which needs to be done so that once the landfill is capped, it will provide a suitable recreation area for the Parkwood Community.

Very truly yours,

MOORE & VAN ALLEN

A handwritten signature in dark ink, appearing to read "David E. Fox". The signature is stylized with a large "D" and a long horizontal stroke.

David E. Fox

nw:E3

cc: F. Robert Ohmann

being for permit
+ cops action
it am

August, 1987

Mr. Ted Chase, President
Key Homes Inc.
4513 Creedmoore Rd.
Suite 312
Raleigh, N.C. 27612

Dear Mr. Chase:

1st paragraph same

2nd On June 25, 1987, Mr. Dexter Matthews,
Waste Management Specialist,
owned by Key Homes Inc. and operated by you
at Clermont Dr., Parkwood subdivision, Durham, N.C.

3rd same

pg 2 by September 18, 1987

I, II, III, IV same except

insert as - II (and renumber other items accordingly)

II. Remove and transport the following
waste to an approved facility for
disposal:

A. Garbage C. Batteries

B. Appliances D. Construction waste like paint
and adhesives, sealants, etc.

pg 4 same

Call Dexter Matthews at (919) 486119 or (919) 5527561.

Sincerely,

Dexter Matthews,
Waste Management Specialist
Solid and Hazardous Waste Management
Branch
Environmental Health section

cc Terry Dover
Central Files
Enclosure

David Fox 7-8-88

N.O.V.
to Parthwood

Stipulation

-Key Items-

Lam Holt

-Keris King

N.O.V.

hold

plaid
faded

Polkwood S/D

6/25/87



P-

Gregory Poole



Raleigh, NC 800-451-7278
Wilmington, NC 800-641-7278
Fayetteville, NC 800-362-7278
Washington, NC 800-645-7278
Edenton, NC 800-458-7278

- Send N.O.V. ?
- Record
- Exposed waste on slope.

5-23-90

Need closure
notice. to
N.O.V. if O.I.C.
look at
12/15/89 TD.